

Aksha Azeem v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 29 June 2022 · Writ-C No. 3871 of 2022 ·
Consider fresh connection after indemnity bond within two weeks.

HEADNOTE

A non-owner seeking a fresh connection must furnish the indemnity bond which the licensee invoked under paragraph 4.2 of the Electricity Supply Code. On her undertaking to give that bond and complete formalities within one week, the licensee shall consider the connection in her name within two weeks. The writ was disposed of without directing that supply be granted.

FACTUAL SUMMARY

Aksha Azeem and her child occupy Plot No. 64, Khasra No. 778, Harihar Nagar, Lucknow, bought by her husband from Harshit Chaudhary. Supply stayed in the seller's name. With matrimonial litigation pending and the husband living elsewhere, he sought permanent disconnection. She applied for a fresh connection in her own name. On 13 May 2022 the District Judge, in Misc. Civil No. 79 of 2022, protected her possession but did not order a connection. She was still without electricity in the summer heat and filed this writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.2

Fresh connection to a non-owner on an indemnity bond

HOLDING

The licensee submitted that, under paragraph 4.2 of the Electricity Supply Code, the petitioner, not being the owner, had to furnish an indemnity bond before a fresh connection could be considered, and that, in light of *Seema Mansoor*, no NOC from the recorded owner was being sought. Petitioner no. 1 undertook to give the indemnity bond within one week and complete all formalities. Opposite party no. 2 shall consider grant of a fresh connection in her name within two weeks thereafter. The writ was disposed of on that direction. ¶ 1-2

FLAG Counsel invoked paragraph 4.2 for the non-owner indemnity bond. The order does not name clause 4.4 or Annexure 4.2; the number is left as stated.

PRINCIPLE TAGS

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents The non-owner occupier undertook to furnish the Supply Code indemnity bond within one week. The Court directed the licensee only to consider the fresh connection within two weeks after that, and disposed of the writ. The licensee, citing *Seema Mansoor*, was not asking for the recorded owner's NOC. Lead authorities: *Seema Mansoor v. U.P. Power Corporation Ltd.* [Writ C No. 28295 of 2014]. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE FRESH CONNECTION MUST BE GRANTED, AND THE OWNERSHIP AND MATRIMONIAL DISPUTES WITH THE HUSBAND.

The District Judge's order was treated as protecting possession only. The writ directed consideration after the bond and did not decide title or compel supply. ¶ 1-2

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Seema Mansoor v. U.P. Power Corporation Ltd.</i>			counsel for opposite party nos. 2 and 3	Referred

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
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Writ C No. 28295
of 2014, decided
on 26.05.2014

SCJ-3371 · Aksha Azeem v. State of U.P. · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.